

25NNCV09364 25NNCV09364

County: los-angeles

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Case Number: 25NNCV09364 Hearing Date: September 17, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Plaintiff

Louise Bonnet Further Response to Requests for Production, Special Interrogatories, and Form Interrogatories; Request for Sanctions

Hearing Date: 9/17/26

CASE NO.: 25NNCV09364

CASE NAME: Estate of

Cosmo Silverman by and through its Successors-in-Interest Adam Silverman and Louise Bonnet, et al. v. Campbell Hall

Moving Party: Defendant Campbell Hall

Responding Party: Plaintiff Louise Bonnet

Notice: Sufficient

Ruling: DENY in part; GRANT in part.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of

Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a wrongful death and premises liability case. On June 4, 2025, fifteen-year-old Campbell Hall student Cosmo Silverman ("Cosmo") was run over and killed in the school's parking lot. (Comp., ¶ 1.) On December 30, 2025, Plaintiffs Adam Silverman, Louise Bonnet, and The Estate of Cosmo Silverman, by and through its Successors-in-Interest Adam Silverman and Louise Bonnet (collectively, "Plaintiffs"), filed a Complaint alleging (1) wrongful death-negligence and (2) premises liability against Defendant Campbell Hall ("Defendant") and Does 1 through 10. Plaintiffs allege that had the school acted on prior complaints about the dangerous design and operation of its Triangle Parking Lot, Cosmo would still be alive. (Ibid.)

Trial is set for April 5, 2027. On May 29, 2026, Defendant filed the instant motions to compel further response to Requests for Production (RPDs) (Res ID: 2137) and Special Interrogatories (Res ID: 2198) served on plaintiff Louise Bonnet (Plaintiff Bonnet). On August 28, 2026, Plaintiff Bonnet filed an opposition to each motion. On September 3, 2026, Defendant filed a reply.

LEGAL

STANDARD

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing," the trial court lacks jurisdiction to order further responses to interrogatories and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see Vidal Sassoon v.

Superior Court (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further Production of Documents

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... (1) [a] statement of compliance with the demand is incomplete[;] ... (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

“A motion under subdivision (a) shall: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; (2) be accompanied by a meet and confer declaration” and (3) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2031.310(b).)

If a court determines the scope of discovery imposes a burden, causes great expense or is intrusive, and such outweighs the likelihood that the discoverable information sought will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

Compel Further Responses to Interrogatories

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that... (1) [a]n answer to a particular interrogatory is evasive or incomplete; (2) [a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or... (3) [a]n objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300(a).)

“A motion under subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., §

2030.300(b).)

If a party fails to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

DISCUSSION

Timeliness

Here, Plaintiff Bonnet submitted verified responses to Defendant's request for production, special interrogatories, and form interrogatories on April 1, 2026. (Gupta Decl., Exh. C.) Supplemental responses were served on May 4, 2026. The instant motions were filed on May 29, 2026, 15 days after the issuance of responses. Thus, the motions are timely and conform with the 45-day statutory deadline.

Separate Statement

California Rules of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Defendant filed separate statements in compliance with rule 3.1345(a) for each of the instant motions. Accordingly, this requirement is satisfied

Meet and Confer

A motion to compel further responses must be accompanied by a "meet and confer" declaration "showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here, Defendant declares that the parties engaged in meet and confer efforts on April 21, 2026, regarding deficiencies in responses, resulting in Plaintiff Bonnet submitting

supplemental responses. (Gupta Decl., ¶ 5.) Defendant declares that the parties met again on May 15, 2026, but did not reach a resolution. (Gupta Decl., ¶ 10.)

The parties have met and conferred on several occasions, satisfying the meet and confer requirements.

Compel Further Production of Documents

Defendant

moves the Court to compel Plaintiff Bonnet to produce further responses to RPD items 1, 11, and 12 arguing that Plaintiff Bonnet's responses are incomplete. (Mot. Compel RPD, p. 3.) RPD #1 seeks documents evidencing Plaintiff Bonnet's claimed special damages including bills, invoices, and or statements. (Mot. Compel RPD, p. 5.) RPDs #11 and #12 seek documents supporting Plaintiff Bonnet's wrongful death/negligence and premises liability causes of action. (Ibid.)

Plaintiff Bonnet

responded to RPD #1 by providing two documents but raised an objection stating California prohibits compelled disclosure of tax returns. (RPD Separate Statement (SS), pp. 2-3.) While California does have a statutory tax return privilege, it is not absolute. (Weingarten v. Superior Court (2002) 102 Cal.App.4th 268, 274.) Plaintiff Bonnet further stated that discovery and investigation remain ongoing. (Ibid.) Defendant argues Plaintiff Bonnet's objection to the request to produce at least ten years of IRS tax information or income verification is necessary for Defendant to properly assess Plaintiff Bonnet's claimed loss of income and diminished earning capacity. (Mot. Compel RPD, p. 5.)

Plaintiff Bonnet

responded to RPDs #11-12 by providing several relevant documents but raised an objection stating that the request seeks premature disclosure of experts. (RPD SS, pp. 3-5.) Plaintiff Bonnet further stated that discovery and investigation remain ongoing. (Ibid.) Defendant argues that Plaintiff Bonnet has not provided a clear code-compliant response stating that all responsive non-privileged documents have been produced. (Mot. Compel RPD, pp. 5-6.) Defendant argues that Plaintiff Bonnet's response that discovery remains ongoing is insufficient. (Ibid.)

Plaintiff Bonnet

argues their supplemental response to RPDs confirms that after diligent search, all responsive documents have been served. (Opp., p. 1.) Plaintiff Bonnet argues that on June 3, 2026, they provided Defendant with five years of IRS records and income verification, notwithstanding the fact that they cannot be compelled.

(Response SS, p. 3.) Further, Plaintiff

Bonnet argues that in the supplemental response to RPDs #11-12, they stated that all responsive documents have been served. (Response SS, pp. 4-5.)

In reply,

Defendant argues that the supplemental responses do not moot the motion and responses remain incomplete. (Reply, p. 2.) Defendant argues that Plaintiff Bonnet's response to RPD #1 is incomplete because it does not provide all the requisite information and does not affirmatively state why all documents have not been produced. (Ibid.) Defendant argues that only gross amounts are shown on the tax returns, while more detailed information is redacted. (Reply, p. 3.) Further, Defendant argues that Plaintiff Bonnet has failed to provide requested medical records evidencing Plaintiff Bonnet's emotional agony which prohibited her from working and suffering special damages. (Ibid.)

Here, Plaintiff

Bonnet has produced five years of requested tax returns and income verification documents in response to #RPD 1. The Court acknowledges the statutory privilege raised by Plaintiff Bonnet with respect to disclosure of tax returns, but as mentioned above, this privilege is not absolute. (Weingarten, supra, 102 Cal.App.4th at 274.) Public policy favors preventing disclosure to encourage truthful filing of tax returns, but in cases where circumstances indicate an intentional waiver of the privilege, the Court has discretion in determining applicability. (Ibid.) As in this case, where income and loss of earnings are squarely put into controversy, courts have found tax returns discoverable. (Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1099.) Moreover, the Court is not privy to the documents provided as "Medical" by Plaintiff Bonnet in response to RPD #1, however Defendant acknowledges this request demands medical records to the extent the claim is supported by them. Plaintiff Bonnet seems to have provided those documents. Further, The Court believes seeking ten years' worth of tax returns is far too overbroad for the intended purpose. Plaintiff Bonnet has stated that all responsive non-privileged documents have been turned over for RPDs #11-12. Accordingly, Plaintiff's responses are not incomplete or evasive.

Accordingly, the
motion to compel further is DENIED as to RPDs.

Compel Further Response to Interrogatories

Defendant moves the Court to compel
Plaintiff Bonnet to provide further response to special interrogatories #4, 15,
and 16. (Mot. Compel Interrog., p. 5.) Defendant also moves the Court to compel
Plaintiff Bonnet to provide further response to form interrogatories #8.4, 8.7,
8.8, 9.1, and 9.2. (Ibid.)

Special Interrogatories

Special interrogatories #4, 15, and
16 all ask Plaintiff Bonnet to plainly state general damages and special
damages to date. (Interrog., SS, 7-9.) Plaintiff Bonnet responds to Special Interrog.
#4, which asks Plaintiff Bonnet to state general damages, with a narrative
description of the loss of her son along with a statement that damages exceed
policy limits. (Resp. SS, p. 9.) Plaintiff Bonnet does not state a specific
number but maintains that noneconomic damages are ascertainable only at trial. (Resp.
SS, p. 10.) Special Interrog. #15-16 ask Plaintiff Bonnet to state specific
special damages and Plaintiff Bonnet responds by listing one known amount, states
that discovery and investigation remain ongoing, and reserves the right to
supplement response. (Interrog., SS, pp. 8-9.) Defendant argues that these
answers are non-responsive, incomplete and evasive because they do not state an
exact estimate of damages. (Resp. SS, pp. 9-12.)

Plaintiff Bonnet argues that her
response to special interrogatories #4, 15-16 stipulate to presently known and
anticipated damages. (Opp., p. 6.) Plaintiff Bonnet argues that general damages
are to be determined by the trier of fact at trial as they encompass
non-economic damages for which the narrative response provided is enough. (Ibid.)
Further, Plaintiff Bonnet argues that she has listed known amounts of special
damages and will continue to supplement response as those amounts become known,
but she cannot be compelled to state amounts not presently known. (Ibid.)

In reply, Defendant argues that special
interrogatories remain incomplete and require Plaintiff Bonnet to provide
estimates. (Reply, pp. 4-5.)

Here, the

special interrogatories seek known estimates for general damages which are non-economic damages and special damages which correspond to dollar amounts. Plaintiff Bonnet's response to special interrogatory #4 is sufficient, as general damages are non-economic and determined by a trier of fact a numerical value is not specifically sought by the parties. However, Plaintiff indicates gathering estimates for special damages categories including lost earnings, funeral expenses, and hospital expenses. The Court believes Plaintiff Bonnet can reasonably provide estimates for the aforementioned categories while reserving the right to supplement those responses. Thus, Plaintiff Bonnet must provide further responses to special interrogatories #15-16.

Accordingly, the

motion to compel further is GRANTED as to the special interrogatories #15-16 and DENIED as to special interrogatory #4.

Form Interrogatories

Form interrogatory #8.4, 8.7, 8.8, 9.1, and 9.2 asks Plaintiff to identify income, loss of income, list damages attributed to the incident, and supporting documents. (Interrog., SS, p. 1.) Plaintiff responds to form interrogatories #8.4, 8.7, 8.8, and 9.1 by affirming loss of income and stating that investigation is ongoing. (Resp. SS, pp. 2-7.) Defendant argues that Plaintiff's responses are incomplete because they provide narrative responses detailing Plaintiff Bonnet's career but do not list substantive amounts. (Ibid.) Plaintiff Bonnet responds to form interrogatory #9.2 by providing several documents as well as five years of tax returns sought pursuant to RPDs. (Resp. SS, p. 8.)

Plaintiff Bonnet argues that her supplemental response to form interrogatories renders the motion moot because she has provided response based on information presently known and supplemented with additional documents. (Opp., p. 4.) Further Plaintiff Bonnet argues that the subsequently provided tax returns resolve any inquiries into income history and economic damages. (Opp., pp. 5-6.)

In reply, Defendant argues that several interrogatories remain unanswered notwithstanding Plaintiff Bonnet's supplemental responses. (Reply, p. 2.) Defendant argues that the provided tax

returns do not provide monthly income or any specific information which could calculate loss of income to date. (Reply, p. 3.) Defendant argues that this leaves form interrogatories #8.4, 8.7, and 8.8 unanswered. (Ibid.) Further, Defendant argues that form interrogatories #9.1-9.2 require itemized answers Plaintiff Bonnet does not provide. (Ibid.) Defendant argues that the tax-return privilege does not shield Plaintiff Bonnet from providing complete answers. (Reply, p. 4.)

Here, Defendant has not shown good cause for why the income estimates and itemizations sought in form interrogatories #8.4, 8.7-8.8, and 9.1-9.2 cannot be ascertained from five years of tax returns which Plaintiff Bonnet has turned over.

Accordingly, the motion to compel further is DENIED as to the form interrogatories.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Defendant request imposition of sanctions in the amount of \$735 for RPDs and \$735 for special and form interrogatories against Plaintiff. (Mot. Compel RPDs, Gupta Decl., ¶ 12; Mot. Compel Interrog., Gupta Decl., ¶ 12.)

Defendant's requests \$1,350 in

attorney's fees reflecting 4 hours preparing both of the instant motions and 2 hours appearing at the hearing at a rate of \$225 per hour, plus a \$120 filing fee for each motion (2 x \$60). (Gupta Decl., ¶ 12.)

Here, the Court will reduce sanctions to \$225 in attorney's fees reflecting 1 hour preparing the motion to compel further response to interrogatories plus a \$60 filing fee, for a total of \$285. Since the motion to compel further response to RPDs is denied, sanctions will not be awarded in that category.

CONCLUSION AND ORDER

Defendant's' Motion to Compel Further
Response to Requests for Production is DENIED.

Defendant's' Motion to Compel Further
Response to Special Interrogatories is DENIED as to #4 and GRANTED as to #15-16.

Defendant's' Motion to Compel Further
Response to Form Interrogatories is DENIED.

Defendant's request for sanctions is
awarded in the amount of \$285, to be paid by Plaintiff Bonnet within 15 days
from this ruling.

MOVING PARTY shall submit a proposed order consistent with this ruling
within 10 days from the date of this hearing and provide notice.

Motion to Compel Plaintiff
Adam Silverman Further Response to Requests for Production, Special
Interrogatories, and Form Interrogatories; Request for Sanctions

Hearing Date: 9/17/26

CASE NO.: 25NNCV09364

CASE NAME: Estate of
Cosmo Silverman by and through its Successors-in-Interest Adam Silverman and
Louise Bonnet, et al. v. Campbell Hall

Moving Party: Defendant Campbell
Hall

Responding Party: Plaintiff
Adam Silverman

Notice: Sufficient

Ruling: DENY in part; GRANT in
part.

BACKGROUND

This is a wrongful death and premises liability case. On June 4, 2025, fifteen-year-old Campbell Hall student Cosmo Silverman ("Cosmo") was run over and killed in the school's parking lot. (Comp., ¶ 1.) On December 30, 2025, Plaintiffs Adam Silverman, Louise Bonnet, and The Estate of Cosmo Silverman, by and through its Successors-in-Interest Adam Silverman and Louise Bonnet (collectively, "Plaintiffs"), filed a Complaint alleging (1) wrongful death-negligence and (2) premises liability against Defendant Campbell Hall ("Defendant") and Does 1 through 10. Plaintiffs allege that had the school acted on prior complaints about the dangerous design and operation of its Triangle Parking Lot, Cosmo would still be alive. (Ibid.)

Trial is set for April 5, 2027. On May 29, 2026, Defendant filed the instant motions to compel further response to Requests for Production (RPDs) (Res ID: 8763) and Special Interrogatories (Res ID: 4767) served on plaintiff Adam Silverman (Plaintiff Silverman). On August 28, 2026, Plaintiff Silverman filed an opposition to each motion. On September 3, 2026, Defendant filed a reply.

LEGAL STANDARD

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing," the trial court lacks jurisdiction to order further responses to interrogatories

and/or requests for production of documents. (Code Civ. Proc., §§ 2030.300 (c), 2031.310 (c); see *Vidal Sassoon v. Superior Court* (1983) 147 Cal.App.3d 681, 685 (45-day deadline to file motion to compel further is mandatory and jurisdictional).)

Compel Further Production of Documents

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... (1) [a] statement of compliance with the demand is incomplete[;] ... (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] (3) [a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310(a).)

“A motion under subdivision (a) shall: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; (2) be accompanied by a meet and confer declaration” and (3) contain a separate statement or a concise outline of the discovery request and each response in dispute. (Code Civ. Proc., § 2031.310(b).)

If a court determines the scope of discovery imposes a burden, causes great expense or is intrusive, and such outweighs the likelihood that the discoverable information sought will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

Compel Further Responses to Interrogatories

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that... (1) [a]n answer to a particular interrogatory is evasive or incomplete; (2) [a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or... (3) [a]n objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300(a).)

“A motion under

subdivision (a) shall: (1) be accompanied by a meet and confer declaration” and (2) contain a separate statement or a concise outline of

the discovery request and each response in dispute. (Code Civ. Proc., § 2030.300(b).)

If a party fails

to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

DISCUSSION

Timeliness

Here,

Plaintiff Silverman submitted verified responses to Defendant’s request for production, special interrogatories, and form interrogatories on April 1, 2026. (Gupta Decl., Exh. C.) Supplemental responses were served on May 4, 2026. (Gupta Decl., ¶ 6.) The instant motions were filed on May 29, 2026, 15 days after the issuance of responses. Thus, the motions are timely and conform with the 45-day statutory deadline.

Separate Statement

California Rules

of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Defendant filed separate statements in compliance with rule 3.1345(a) for each of the instant motions. Accordingly, this requirement is satisfied

Meet and Confer

A

motion to compel further responses must be accompanied by a “meet and confer declaration “showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here,

Defendant declares that the parties engaged in meet and confer efforts on April 21, 2026, regarding deficiencies in responses, resulting in Plaintiff Silverman submitting supplemental responses. (Gupta Decl., ¶ 5.) Defendant declares that the parties met again on May 15, 2026, but did not reach a resolution. (Gupta Decl., ¶ 10.)

The parties have met and conferred on several occasions, satisfying the meet and confer requirements.

Compel Further Production of Documents

Defendant moves the Court to compel Plaintiff Silverman to produce further responses to RPD items 1, 11, and 12 arguing that Plaintiff Silverman's responses are incomplete. (Mot. Compel RPD, p. 3.) RPD #1 seeks documents evidencing Plaintiff Silverman's claimed special damages including bills, invoices, and or statements. (Mot. Compel RPD, p. 5.) RPDs #11 and #12 seek documents supporting Plaintiff Silverman's wrongful death/negligence and premises liability causes of action. (Ibid.)

Plaintiff Silverman responded to RPD #1 by providing two documents but raised an objection stating California prohibits compelled disclosure of tax returns. (RPD Separate Statement (SS), pp. 2-3.) While California does have a statutory tax return privilege, it is not absolute. (Weingarten v. Superior Court (2002) 102 Cal.App.4th 268, 274.) Plaintiff Silverman further stated that discovery and investigation remain ongoing. (Ibid.) Defendant argues Plaintiff Silverman's objection to the request to produce at least ten years of IRS tax information or income verification is necessary for Defendant to properly assess Plaintiff Silverman's claimed loss of income and diminished earning capacity. (Mot. Compel RPD, p. 5.)

Plaintiff Silverman responded to RPDs #11-12 by providing several relevant documents but raised an objection stating that the request seeks premature disclosure of experts. (RPD SS, pp. 3-5.) Plaintiff Silverman further stated that discovery and investigation remain ongoing. (Ibid.) Defendant argues that Plaintiff Silverman

has not provided a clear code-compliant response stating that all responsive non-privileged documents have been produced. (Mot. Compel RPD, pp. 5-6.) Defendant argues that Plaintiff Silverman's response that discovery remains ongoing is insufficient. (Ibid.)

Plaintiff Silverman

argues that their supplemental response to RPDs confirms that after diligent search, all responsive documents have been served. (Opp., p. 1.) Plaintiff Silverman argues that on June 3, 2026, they provided Defendant with five years of IRS records and income verification, notwithstanding the fact that they cannot be compelled. (Response SS, p. 3.) Further, Plaintiff Silverman argues that in the supplemental response to RPDs #11-12, they stated that all responsive documents have been served. (Response SS, pp. 4-5.)

In reply,

Defendant argues that the supplemental responses do not moot the motion and responses remain incomplete. (Reply, p. 2.) Defendant argues that Plaintiff Silverman's response to RPD #1 is incomplete because it does not provide all the requisite information and does not affirmatively state why all documents have not been produced. (Ibid.) Defendant argues that only gross amounts are shown on the tax returns, while more detailed information is redacted. (Reply, p. 3.) Further, Defendant argues that Plaintiff Silverman has failed to provide requested medical records evidencing Plaintiff Silverman's emotional agony which prohibited him from working and suffering special damages. (Ibid.)

Here, Plaintiff Silverman

has produced five years of requested tax returns and income verification documents in response to #RPD 1. The Court acknowledges the statutory privilege raised by Plaintiff Silverman with respect to disclosure of tax returns, but as mentioned above, this privilege is not absolute. (Weingarten, supra, 102 Cal.App.4th at 274.) Public policy favors preventing disclosure to encourage truthful filing of tax returns, but in cases where circumstances indicate an intentional waiver of the privilege, the Court has discretion in determining applicability. (Ibid.) As in this case, where income and loss of earnings are squarely put into controversy, courts have found tax returns discoverable. (Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1099.) Moreover, Court is not privy to the documents provided as "Medical" by Plaintiff Silverman in response to RPD #1, however Defendant acknowledges this request demands medical records to the extent the claim is supported by them. Plaintiff Silverman seems to have provided those documents. Further, The Court believes

seeking ten years' worth of tax returns is far too overbroad for the intended purpose. Plaintiff Silverman has stated that all responsive non-privileged documents have been turned over for RPDs #11-12. Accordingly, Plaintiff's responses are not incomplete or evasive.

Accordingly, the motion to compel further is DENIED as to RPDs.

Compel
Further Response to Interrogatories

Defendant moves the Court to compel Plaintiff Silverman to provide further response to special interrogatories #4, 15, and 16. (Mot. Compel Interrog., p. 5.) Defendant also moves the Court to compel Plaintiff Silverman to provide further response to form interrogatories #8.4, 8.7, 8.8, 9.1, and 9.2. (Ibid.)

Special Interrogatories

Special interrogatories #4, 15, and 16 all ask Plaintiff Silverman to plainly state general damages and special damages to date. (Interrog., SS, 7-9.) Plaintiff Silverman responds to Special Interrog. #4, which asks Plaintiff Silverman to state general damages, with a narrative description of the loss of his son along with a statement that damages exceed policy limits. (Resp. SS, p. 9.) Plaintiff Silverman does not state a specific number but maintains that noneconomic damages are ascertainable only at trial. (Resp. SS, p. 10.) Special Interrog. #15-16 ask Plaintiff Silverman to state specific special damages and Plaintiff Silverman responds by listing two known amounts, states that discovery and investigation remain ongoing, and reserves the right to supplement response. (Interrog., SS, pp. 8-9.) Defendant argues that these answers are non-responsive, incomplete and evasive because they do not state an exact estimate of damages. (Resp. SS, pp. 9-12.)

Plaintiff Silverman argues that his response to special interrogatories #4, 15-16 stipulate to presently known and anticipated damages. (Opp., p. 6.) Plaintiff Silverman argues that general damages are to be determined by the trier of fact at trial as they encompass non-economic damages for which the narrative response provided is enough. (Ibid.) Further, Plaintiff Silverman argues that he has listed known amounts of special damages and will continue to supplement response as those amounts become known,

but he cannot be compelled to state amounts not presently known. (Ibid.)

In reply, Defendant argues that special interrogatories remain incomplete and require Plaintiff Silverman to provide estimates. (Reply, pp. 4-5.)

Here, the special interrogatories seek known estimates for general damages which are non-economic damages and special damages which correspond to dollar amounts. Plaintiff Silverman's response to special interrogatory #4 is sufficient, as general damages are non-economic and determined by a trier of fact a numerical value is not specifically sought by the parties. However, Plaintiff indicates gathering estimates for special damages categories including funeral expenses and hospital expenses. The Court believes Plaintiff Silverman can reasonably provide estimates for the aforementioned categories while reserving the right to supplement those responses. Thus, Plaintiff Silverman must provide further responses to special interrogatories #15-16.

Accordingly, the motion to compel further is GRANTED as to the special interrogatories #15-16 and DENIED as to special interrogatory #4.

Form Interrogatories

Form interrogatory #8.4, 8.7, 8.8, 9.1, and 9.2 asks Plaintiff to identify income, loss of income, list damages attributed to the incident, and supporting documents. (Interrog., SS, p. 1.) Plaintiff responds to form interrogatories #8.4, 8.7, 8.8, and 9.1 by affirming loss of income, providing specific amounts, and stating that investigation is ongoing. (Resp. SS, pp. 2-7.) Defendant argues that Plaintiff's responses are incomplete because they provide narrative responses detailing Plaintiff Silverman's career but do not list substantive amounts. (Ibid.) Plaintiff Silverman responds to form interrogatory #9.2 by providing several documents as well as five years of tax returns sought pursuant to RPDs. (Resp. SS, p. 8.)

Plaintiff Silverman argues that his supplemental response to form interrogatories renders the motion moot because he has provided response based on information presently known and supplemented with additional documents. (Opp., p. 4.) Further Plaintiff Silverman argues that the subsequently provided tax returns resolve any inquiries into income history and

economic damages. (Opp., pp. 5-6.)

In reply, Defendant argues that several interrogatories remain unanswered notwithstanding Plaintiff Silverman's supplemental responses. (Reply, p. 2.) Defendant argues that the provided tax returns do not provide monthly income or any specific information which could calculate loss of income to date. (Reply, p. 3.) Defendant argues that this leaves form interrogatories #8.4, 8.7, and 8.8 unanswered. (Ibid.) Further, Defendant argues that form interrogatories #9.1-9.2 require itemized answers Plaintiff Silverman does not provide. (Ibid.) Defendant argues that the tax-return privilege does not shield Plaintiff Silverman from providing complete answers. (Reply, p. 4.)

Here, Defendant has not shown good cause for why the income estimates and itemizations sought in form interrogatories #8.4, 8.7-8.8, and 9.1-9.2 cannot be ascertained from five years of tax returns which Plaintiff Bonnet has turned over.

Accordingly, the motion to compel further is DENIED as to the form interrogatories.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Defendant

request imposition of sanctions in the amount of \$735 for RPDs and \$735 for special and form interrogatories against Plaintiff. (Mot. Compel RPDs, Gupta Decl., ¶ 12; Mot. Compel Interrog., Gupta Decl., ¶ 12.)

Defendant's requests \$1,350 in attorney's fees reflecting 4 hours preparing both of the instant motions and 2 hours appearing at the hearing at a rate of \$225 per hour, plus a \$120 filing fee for each motion (2 x \$60). (Gupta Decl., ¶ 12.)

Here, the Court will reduce sanctions to \$225 in attorney's fees reflecting 1 hour preparing the motion to compel further response to interrogatories plus a \$60 filing fee, for a total of \$285. Since the motion to compel further response to RPDs is denied, sanctions will not be awarded in that category.

CONCLUSION AND ORDER

Defendant's Motion to Compel Further
Response to Requests for Production is DENIED.

Defendant's Motion to Compel Further
Response to Special Interrogatories is DENIED as to #4 and GRANTED as to #15-16.

Defendant's Motion to Compel Further
Response to Form Interrogatories is DENIED.

Defendant's request for sanctions is
awarded in the amount of \$285, to be paid by Plaintiff Silverman within 15 days
from this ruling.

MOVING PARTY shall submit a proposed
order consistent with this ruling within 10 days from the date of this hearing
and provide notice.